

Plaintiff's eighth cause of action lacks the necessary specificity to plead fraud, and plaintiff does not plead reliance on any allegedly false or misleading statements made by defendant. Moreover, the alleged misrepresentations were made not to the plaintiff, but rather to the California Civil Rights Department. (First Amend. Compl. at pgs. 50-54, Exh. J).

As to plaintiff's eighth cause of action for fraud, defendant's motion for judgment on the pleadings is granted the motion is granted without leave to amend.

Conclusion

Defendant's motion for judgment on the pleadings is granted without leave to amend as to the third through eighth causes of action and is otherwise denied. Defendant shall file and serve her answer to the first amended complaint on or before August 28, 2026.

11. S-CV-0056495 Olberding, Deborah M v. Boone, Christopher M

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **August 12, 2026, at 8:30 a.m. in Department 3** before Commissioner Michael A. Jacques. Department 3 is located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorney's Fees

Respondent moves for attorney's fees as the alleged prevailing party in a civil harassment restraining order (CHRO) proceeding. Petitioner opposes the motion.

Background

On December 2, 2025, petitioner Deborah Marie Olberding filed a request for civil harassment restraining order against respondent Christopher Michael Boone in this court. (Theodoropoulos Decl., ¶ 5, Exh. A.) On January 7, 2026, petitioner dismissed the petition without prejudice. (Resp't Opp'n, Exh. A.) As the court had not yet processed the dismissal by the hearing date, on January 9, 2026, the court dropped the matter when petitioner failed to appear at the hearing. On January 26, 2026, the Santa Clara County Court entered a five-year civil harassment restraining order after hearing against Ms. Olberding, which she did not contest. (Theodoropoulos Decl., ¶¶ 5-6, Exh. C.) On April 20, 2026, the Santa Clara County Superior Court granted Mr. Boone's motion for attorney's fees and costs in the total amount of \$14,112.53. (Theodoropoulos Supp. Decl., ¶¶ 7-8, Exh. G.)

Respondent seeks an award of attorney's fees of \$19,255.75 incurred for this CHRO action, plus additional attorney's fees incurred in filing this motion.

Analysis

“A person who has suffered harassment as defined in subdivision (b) may seek a temporary restraining order and an order after hearing prohibiting harassment as provided in this section.” (Code Civ. Proc., § 527.6 (a)(1).) “The prevailing party in an action brought pursuant to this section may be awarded court costs and attorney’s fees, if any.” (Code Civ. Proc., § 527.6 (s).)

Prevailing party

Respondent contends he is the prevailing party.

In *Adler v. Vaicius*, (1993) 21 Cal.App.4th 1770, the California Court of Appeal held that a respondent in a civil harassment proceeding under section 527.6 was entitled to attorney’s fees as the prevailing party after the petitioner voluntarily dismissed her petition. (See *Adler*, 21 Cal.App.4th at 1774 [respondent entitled to attorney’s fees as prevailing party following petitioner’s voluntary dismissal of section 527.6 petition; attorney fees recoverable under statutory authorization deemed element of costs].)

“The decision whether to award attorney fees to a prevailing party—plaintiff or defendant—under section 527.6 is a matter committed to the discretion of the trial court.” (*Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802-03.)

Petitioner argues she dismissed the petition without prejudice, and respondent did not cite any legal authority that a dismissal without prejudice in this action is a final determination on the merits. Moreover, she argues section 527.6 does not define “prevailing party.” (Opp’n at 2.)

In *Elster v. Friedman*, the Court of Appeal observed that because section 527.6, does not define “prevailing party ... We turn for guidance to a more general statute, Code of Civil Procedure section 1032, which states in part: ‘(a)(4) ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. When any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court.’” (*Elster*, 211 Cal.App.3d at 1443.)

In *Elster* and *Adler*, the petitioner moved to dismiss, as was the case here. Therefore, the court may find respondent the prevailing party and award attorney’s fees, in its discretion.

Under section 527.6, subdivision (s), “[t]he prevailing party in an action brought pursuant to this section may be awarded court costs and attorney’s fees, if any.” By its terms, the subdivision gives trial courts discretion “to award attorney fees to a prevailing party—plaintiff or defendant.” (*Krug*, 172 Cal.App.4th at 802). The “determination of the

prevailing party lies in the court's sound discretion" and that "determination must be upheld unless there is a manifest abuse of discretion." (*Elster*, 211 Cal.App.3d at 1443.)

Therefore, the court finds, in its discretion, respondent meets the definition of the prevailing party.

Attorney Fee Calculation

Respondent seeks an award of attorney's fees of \$19,255.75 incurred in this CHRO action, plus additional attorney's fees incurred in filing this motion. (Mot for Atty Fees at 12.) Respondent states a total of 35.75 hours were expended on the Placer County proceedings by two attorneys. (*Id.* at 10.) Respondent states counsel spent 5.5 hours preparing the motion for attorney's fees, incurring \$2,722.50 in fees, at the hourly rate of \$495.00 per hour. (Theodoropoulos Decl., ¶ 21.) Respondent states Constantine M. Panagotacos is a partner with over 15 years of civil litigation experience with an hourly rate of \$695.00 in the San Francisco Bay Area. (Theodoropoulos Decl., ¶¶ 15-16.) Respondent states Christina Theodoropoulos is an associate with an hourly rate of \$495.00 in the San Francisco Bay Area. (*Id.*)

Petitioner disputes, at minimum, the itemized invoices above which amount to \$7,280.00. (Supp. Opp'n at 5.) Petitioner also disputes the remaining total (\$19,255.75-\$7,280.00 or \$11,975.75) as not reasonable in a matter without discovery or contested hearings. (*Id.*)

The court notes petitioner specifically disputes 14.5 hours expended of the 35.75 total hours claimed by respondent. (See Supp. Opp'n at 2-5.) Although petitioner disputes the 2.25 hours to appear for the hearing, the dismissal had not been processed in time for the hearing. The court also observes respondent's counsel rates for the San Francisco Bay Area of \$495 and \$695, respectively, are unreasonable for a CHRO action in Placer County. The court notes this case was dropped at the hearing. Therefore, in its discretion, the court awards attorney's fees to respondent for 26.5 hours (the difference of 35.75 hours and the 14.5 hours disputed by the petitioner with adding 2.25 hours to appear at the January 9, 2026 hearing and 3 hours for the filing of this motion) at \$400 per hour (the high end attorney fee rate for a CHRO action in Placer County) for a total of \$10,600 in attorney's fees plus costs of \$59.50.

Conclusion

Accordingly, in its discretion, the court grants respondent's motion for attorney's fees and costs to respondent, as the prevailing party, and awards \$10,600, plus costs of \$59.50.

12. S-CV-0057018 King, Ted Arthur v. Tarver, Russell Lee

The motion to vacate judgment in S-CV-0042357 is continued to **August 28, 2026 at 8:30 a.m. in Department 1** to be heard by **Commissioner S. Dehr**. Department 1 is located at 101 Maple Street, Auburn, California 95603